

Stereo.HCJDA 38.
Judgment Sheet

IN THE LAHORE HIGH COURT, LAHORE.

JUDICIAL DEPARTMENT

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Writ Petition No.53343 of 2025.

Muhammad Suleman, etc.

Versus

Muhammad Qamar, etc.

J U D G M E N T.

Date of hearing: **20.10.2025.**

Petitioners by: Muhammad Imran Sulehria,
Advocate.

Respondent No.1 by: Muhammad Qamar, Advocate.
(Submits power of attorney today).

Respondents No.2-3 by: Ch. Tanvir Akhtar, Addl. Advocate
General Punjab.

AHMAD NADEEM ARSHAD, J. Through this constitutional petition filed under Article 199 of the *Constitution of Islamic Republic of Pakistan, 1973*, the petitioners have called in question the validity and legality of judgments/orders of the Courts below pursuant where to their application for comparison of signatures/thumb impressions of deceased Muhammad Khalid (*alleged vendor*) was dismissed.

2. Tersely, necessary facts forming background of the proceedings in hand are that respondent No.1 instituted a suit for validation of possession through specific performance of agreement

to sell and receipt dated 27.08.2014 against the petitioners on 26.01.2021 by contending therein that their deceased father namely Muhammad Khalid sold the Plot No.81-X-RSR measuring 04 Marlas situated at Madina Town, Tehsil & District Faisalabad, and by executing agreement to sell dated 27.08.2014 agreed that after execution of decree dated 14.05.2019 he will transfer the plot in his name. The petitioners, who are legal heirs of Muhammad Khalid, contested the suit by filing written statement in contrast. They also instituted a suit for cancellation of agreement to sell on 16.10.2021. Learned Trial Court consolidated both the suits, framed consolidated issues and invited the parties to lead their respective evidence. At this juncture, the petitioners filed an application for comparison of signatures and thumb impression of deceased Muhammad Khalid available on the agreement to sell (Exh.P.1) and Receipt (Exh.P.2) dated 27.08.2014 with his admitted signatures. Learned Trial Court, after getting reply of the application, dismissed the same vide order dated 12.02.2025. Feeling aggrieved, the petitioners preferred a Revision Petition which also met the same fate and dismissed by the learned Revisional Court through judgment & memo of cost dated 30.06.2025. Hence, this petition.

3. Heard. Record perused.

4. After hearing learned counsel for the parties and going through the record, it has been observed that the respondent No.1 instituted suit for specific performance of agreement to sell dated 27.08.2024 allegedly executed by the father of the petitioners namely Muhammad Khalid. Whereas, on the other hand, the petitioners

while submitting their written statement have categorically claimed that the agreement to sell dated 27.08.2014 and receipt are fake and factious. They maintained that their deceased father never entered into any agreement with the respondent No.1. Besides this, they also instituted a suit for cancellation of agreement to sell.

5. A bare reading of Articles 59 and 84 of Qanun-e-Shahadat Order, 1984 (**QSO**), reveals that it is within the judicial discretion of the Court to seek assistance of experts when faced with questions involving handwriting or fingerprint identification. However, such discretion must not be exercised arbitrarily or mechanically, rather in furtherance of justice and to ensure fair adjudication of disputed facts.

The aforesaid provisions are reproduced as under:-

59. Opinion of experts. *When the Court has to form an opinion upon a point of foreign law, or of science, or art, for bomb disposal or as to identity of hand-documents made by or through an information system the opinions upon that writing or finger impressions, for as to authenticity and integrity of electronic point of persons specially skilled in such foreign law, science or art, or in questions as to identity of handwriting or finger impressions or as to the functioning, specifications, programming and operations of information systems, are relevant facts.*

Such persons are called experts.

84. Comparison of signature, writing or seal with others admitted or proved. *(1) In order to ascertain whether a signature, writing or seal is that of the person by whom it purports to have been written or made any signature, writing or seal admitted or proved to the satisfaction of the Court to have been written or made by that person may be compared with the one which is to be proved, although that signature, writing or seal has not been produced or proved for any other purpose.*

(2) The Court may direct any person present in Court to write any words or figures for the purpose of enabling the Court to compare

the words or figures so written with any words or figures alleged to have been written by such person.

(3) This Article applies also, with any necessary modifications, to finger-impressions.

6. In the present case, the entire lis between the parties hinges on the authenticity or otherwise of the agreement to sell (Exh.P.1) and receipt (Exh.P.2). The petitioners have consistently maintained that their father never executed the said documents. They are not mere denials; rather, the petitioners have built their entire defense around the plea of forgery and fabrication. Thus, the dispute pertains to the very root of the matter and not a collateral or peripheral issue.

7. It is settled law that when a party alleges forgery of a document and the document's authenticity is seriously disputed, the Court must endeavor to resolve the dispute by employing all available legal tools, including forensic examination. The opinion of a handwriting or fingerprint expert, though not conclusive, is nevertheless a relevant fact under Article 84, and can greatly assist the Court in forming a fair and just conclusion.

8. It is also to be noted that expert evidence does not usurp the jurisdiction of the Court. It is merely an aid to the judicial mind. The Court is not bound to follow the expert opinion blindly but may assess it in light of available oral as well as documentary evidence coupled with other attending facts and circumstances. However, to deny the opportunity to produce such expert opinion, particularly when the dispute is entirely based on alleged fabrication, is contrary to the principles of natural justice and may prejudice a fair trial.

9. Moreover, it is the right of a litigant to seek indulgence of the Court, so as to discharge the burden of proof placed upon him including comparison of the disputed thumb impressions. To reach this conclusion, I am fortified to seek guidance from the law laid down by the Hon'ble Supreme Court of Pakistan in a case titled "Mst. Akhtar Begum V. Muslim Commercial Bank Ltd." (2009 SCMR 264), wherein the apex Court held as under:

"We have minutely examined the disputed documents. In view of the emphatic denial by the petitioner of having signed the aforesaid documents. In our view, it was imperative for the Banking Court to have referred the same to handwriting expert for obtaining his opinion whether the purported signatures on the disputed documents were in the handwriting of the petitioner or were forged or manipulated by somebody else. The above very important aspect of the case not only escaped the attention of the Banking Court but the High Court also did not take notice thereof without realizing that a person cannot be made liable or responsible to make payment which he or she would otherwise not legally be bound to pay but being pressurized or forced to pay on the ground of some forged or manipulated documents. Persistent, strong and vehemence denial of the petitioner of her signature on the mortgage deed, power of attorney, etc. led us to make a comparison of her denied signatures with her admitted signatures and the comparison was made with the naked eye but the results were not very encouraging and the peculiar facts and circumstances of the case warranted such comparison by a handwriting expert for conclusively hold that the disputed documents bear the signature of the petitioner It is a right of a party to seek and demand every possible assistance from the Courts of law and to hold him/her responsible only when he or she is found to have acted contrary to law."

10. During the course of arguments, learned counsel for the respondent No.1 maintained that predecessor of the petitioners namely Muhammad Khalid has passed away and the Court cannot order comparison of signatures and thumb impressions of a dead person as his specimen signatures/thumb impressions cannot be obtained. However, this assertion of learned counsel is not tenable as there may be many other documents like record of National Database and Registration Authority (NADRA) or any other record where

admitted thumb impressions of the deceased can be found. The assistance in this regard is gathered from the judgment rendered by the apex Court in a case titled “Syed Sharif ul Hassan through L.Rs. V. Hafiz Muhammad Amin and others” (2012 SCMR 1258), wherein the Court emphasized that where the authenticity of a document hinges upon disputed signatures or thumb impressions, the just and proper course is to seek expert opinion, especially where such evidence is essential for the fair adjudication of the matter. Therefore, in the present case as well, appropriate efforts should be made to procure admitted signatures or thumb impressions of the deceased Muhammad Khalid from NADRA or any other reliable source, and the same should be sent for expert comparison with the disputed ones to arrive at a just conclusion.

11. Learned counsel for the respondent No.1 also emphasized that application for comparison of signatures and thumb impression has been filed at the stage when evidence of the parties has been almost concluded, hence, the same is not maintainable. Article 84 of QSO has not stipulated any time or stage for filing the application for comparison of signatures/thumb impressions. Reliance in this regard is placed on the case titled “Ghulam Haider V. Fateh Muhammad” (2005 MLD 1501).

12. In the contemporary era, where forensic science has made remarkable advancements, the Courts must not remain insulated from these developments. The comparison of signatures and particularly thumb impressions should be liberally allowed by the Courts, especially when the very authenticity of a document is under

serious challenge. It is a universally recognized and scientifically established fact that the thumb impression of one individual does not match with that of any other person in the world, making it an exceptionally reliable and conclusive piece of evidence. With the evolution and sophistication of forensic techniques, including biometric analysis, digital magnification, and automated fingerprint identification systems (AFIS), it has now become not only possible but also practical to compare disputed thumb impressions with admitted ones with a high degree of accuracy and reliability.

13. Moreover, the character of a person's signature is generally consistent in appearance, and the signature of the same individual is typically recognizable. However, in today's world, marked by significant advancements in various fields, it is not difficult to forge a person's handwriting in a manner that makes it nearly impossible for even the most experienced and discerning judge to distinguish between genuine and forged writing. In such cases, the most critical elements to be examined are the general characteristics and formation of letters in both the questioned and admitted handwriting, including fixed pen habits and individual mannerisms. The identity or similarity in handwriting must be evaluated based on various factors arising from individual characteristics, which have been well-defined in the technical language of forensic handwriting experts. To effectively compare different handwriting samples or signatures, it is essential to analyze multiple features, such as pen hold, pen pressure, slant, writing speed, letter sizing, alignment, spacing, line quality, tremors, curves, connections, rhythm, momentum, pulse, and

positioning of letters, among others. These elements collectively assist in forming an expert opinion regarding the authenticity or forgery of the handwriting or signature in question which can only be done by a handwriting expert.

14. Considering the above discussion, it is incumbent upon the Courts to get benefit of modern technological tools and scientific methodologies for the fair adjudication of disputes. Denying access to such crucial evidence, particularly in cases hinging on allegations of forgery and fabrication, would be antithetical to the concept of substantive justice. It must be remembered that justice cannot be sacrificed at the altar of procedural technicalities. As rightly held by the Hon'ble Supreme Court in Syed Sharif ul Hassan's Case (supra), the assistance of expert opinion becomes essential when the entire case revolves around the genuineness of disputed thumb impressions or signatures. The apex Court emphasized that such expert analysis is not only permissible under Article 84 of the Qanun-e-Shahadat Order, 1984, but also necessary for ensuring that the truth is unearthed and justice is not derailed due to lack of scientific inquiry.

15. In view of the above, learned Courts below, while dismissing the petitioners' application, have exercised discretion without adequately appreciating the centrality of the disputed documents to the resolution of the suit. The impugned orders of the courts below are found to be perverse, arbitrary, and violative of both statutory and constitutional principles.

16. As an inevitable corollary of above discussion, this constitutional petition is accepted. Consequently, while setting aside

the impugned orders/judgments of the Courts below dated 12.02.2025 and 30.06.2025, the application filed by the petitioners before the learned Trial Court for comparison of signatures and thumb impressions of Muhammad Khalid (deceased) on Exh.P.1 and Exh.P.2 with his admitted signatures is **allowed**. The Trial Court is directed to obtain expert opinion from the Forensic Science Laboratory by sending the documents Exh.P.1 and Exh.P.2 for comparison with the admitted signatures/thumb impressions of deceased Muhammad Khalid in the light of observations made hereinabove and proceed further in accordance with law.

(AHMAD NADEEM ARSHAD)
JUDGE.

Approved for Reporting.

JUDGE.

M. Arsalan*

